

118. Which of the following Article of Indian Constitution mentions the 'Doctrine of Pleasure'?

- (a) Article 200
- (b) Article 301
- (c) Article 310
- (d) Article 311
- (e) None of the above

Chhattisgarh P.C.S. (Pre) 2016

Ans. (c)

Article 310 of the Constitution of India propounds the 'Doctrine of Pleasure'. According to this Article, "Except as expressly provided by this constitution, every person who is a member of a defence service or of a civil service of the union or of an all India service or holds any post connected with defence or any civil post under the union, holds office during the pleasure of the President and every person who is a member of a civil service of a state or holds any civil post under a state, holds office during the pleasure of the Governor of the State.

119. The Union Public Service Commission constituted a committee in July 2000 to review the civil services examination under the chairmanship of :

- (a) Professor Sukhadeo Thorat
- (b) Professor Deepak Kumar Srivastava
- (c) Professor M. Jagadesh Kumar
- (d) Professor Yoginder Kumar Alagh

M.P. P.C.S. (Pre) 2023

Ans. (a)

See the explanation of the above question.

120. In which year P.C. Hota Committee on Civil Services Reforms was constituted?

- (a) 2003
- (b) 2004
- (c) 2005
- (d) 2006

U.P.P.C.S. (Pre) 2021

Ans. (b)

In February 2004, Hota was appointed by Government of India's Chairman of the Committee on Civil Services Reforms. He submitted the report of the Committee to the Government of India within six months.

121. On which of the following dates the 'Civil Services Day' is celebrated in India?

- (a) July 21
- (b) June 21
- (c) May 21
- (d) April 21

Uttarakhand P.C.S. (Pre) 2021

Ans. (d)

The 'Civil Services Day' is celebrated in India on April 21 every year. The first such function was held in Vigyan Bhawan on 21 April, 2006. The reason for this date is because on 21 April, 1947. Sardar Vallabhbhai Patel addressed the first batch of civil servant at Metcalf House.

Temporary Special Provisions

*Article 369 to 392 in part XXI of the Constitution deals with the temporary, transitional and special provisions. *Article 370 was related to the temporary provisions of the state of Jammu and Kashmir. *The state of Jammu and Kashmir had its own separate Constitution. *The Constitution of Jammu and Kashmir was adopted on 17 November 1956 and came into force on 26 January, 1957. *The State of Jammu and Kashmir was excluded from the Article 152 of the chapter 1 of part VI (provision related to states) in which the definition of state is provided. Article 370 granting temporary special provision to the state of Jammu and Kashmir was declared inoperative through a notification issued by the President on the recommendation of the parliament on 6 August, 2019. The Jammu and Kashmir Reorganization Act, 2019 bifurcates the state of Jammu and Kashmir into two union territories (Jammu and Kashmir and Ladakh).

*The states of Maharashtra and Gujarat are given special provisions under Article 371. *Nagaland under Article 371 A, Assam under Article 371 B, Manipur under Article 371 C, Sikkim under Article 371 F, Mizoram under Article 371 G, Goa under Article 371 I and Karnataka under Article 371 J are granted special provisions.

1. Which Article of the Indian Constitution deals with special provisions with respect to different States?

- (a) Art. 369
- (b) Art. 370
- (c) Art. 371
- (d) Art. 372

U.P.P.C.S. (Pre) 1997

Ans. (c)

Articles 371 to 371 J of the Indian Constitution deal with special provisions in relation to the States of Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa and Karnataka.

2. Article 371-B of the Constitution of India makes special provisions for which of the following State/s?

- (a) Maharashtra and Gujarat
- (b) Assam

- (c) Nagaland
- (d) Manipur

U.P.P.C.S. (Mains) 2010

Ans. (b)

According to temporary, transitional and special provisions, of Part XXI of the Indian Constitution special provisions have been made for the tribal areas in Assam under Article 371-B.

3. Article 371 of the Constitution makes special provisions for which of the following States?

- (a) Jammu and Kashmir
- (b) Maharashtra and Gujarat
- (c) Nagaland
- (d) Andhra Pradesh

U.P.P.C.S. (Mains) 2011

Ans. (b)

Article 371 of the Constitution makes special provisions for the States of Maharashtra and Gujarat.

4. Which region of the country conferred special status under Article 371-J of the Constitution of India?

- (a) Nagaland
- (b) Hyderabad and Karnataka
- (c) Maharashtra and Gujarat
- (d) Ladakh

U.P.P.C.S. (Pre) 2020

Ans. (b)

A new Article 371-J was inserted in Part XXI of the Indian Constitution by 'The Constitution (Ninety-Eighth Amendment) Act, 2012'. Article 371-J empowers the Governor of Karnataka to take steps for the development of Hyderabad - Karnataka region.

5. In India, there is only one Constitution for the Centre as well as for each state. However, a state is exception to it. That state is

- (a) Andhra Pradesh
- (b) Jammu Kashmir
- (c) Tamil Nadu
- (d) Kerala

U.P.P.C.S. (Mains) 2014

Ans. (*)

There was one Constitution for all the Indian States and the Centre, but the State of Jammu and Kashmir was an exception to this, because there were certain temporary provisions with respect to the State of Jammu and Kashmir under Article 370. This State had its separate Constitution. Article 370 was declared inoperative on 6 August 2019 by a Presidential order. Now Jammu and Kashmir and Ladakh are two separate Union territories of Indian the Union.

6. Which of the following is not a generally accepted parameter for granting special status to a state in India?

- (a) Hilly and difficult terrain
- (b) Low population density
- (c) Sizeable SC and ST population
- (d) Strategic location along international borders

M.P.P.C.S. (Pre) 2025

Ans. (c)

The Special Category Status (SCS) is a classification granted by the central government to support the development of states facing geographical and socio-economic challenges. The Constitution does not originally provide for this status; it was introduced based on the recommendations of the Fifth Finance Commission in 1969. The first states to receive this status in 1969 were Jammu and Kashmir, Assam, and Nagaland.

In the past, Special Category Status (SCS) for plan assistance was granted by the National Development Council of the erstwhile Planning Commission. A total of eleven states, including Assam, Nagaland, Himachal Pradesh, Manipur, Meghalaya, Sikkim, Tripura, Arunachal Pradesh, Mizoram, Uttarakhand, and Telangana, have been accorded this status. Telangana, India's newest state, received SCS as it was carved out of Andhra Pradesh. However, the 14th Finance Commission discontinued the 'special category status' for states, except for the Northeastern states and three hill states. The parameters for Special Category Status, based on the Gadgil Formula, include hilly terrain, low population density or a significant tribal population, strategic location along international borders, economic and infrastructural underdevelopment, and weak financial viability of the state. It is now clearly indicated that option (c) is the correct answer.

7. Providing special status to the state of Jammu and Kashmir under the Indian constitution means -

- (a) Parliament does not have the right to legislate.
- (b) Kashmir has different Constitution.
- (c) Only the President can make Acts.
- (d) Only Legislative Assembly has the right to legislate.

M.P.P.C.S. (Pre) 1992

Ans. (*)

There were specific temporary provisions with respect to the State of Jammu and Kashmir enshrined under Article 370. It had its own separate Constitution. The administration and provisions of this State were different from those of other States. The State of Jammu and Kashmir was not included in the definition of the States provided in Article 152 of Chapter 1 of Part VI of the Constitution. On August 9, 2019, by a Presidential order, Jammu and Kashmir became a Union Territory.

8. Article 370 of Indian Constitution is –

- (a) A Regular Provision
- (b) A Permanent Provision
- (c) A Temporary and Transitional Provision
- (d) An Acting Provision
- (e) None of the above

Chhattisgarh P.C.S. (Pre) 2015

Ans. (c)

Article 370 of the Indian Constitution was a temporary provision with respect to the State of Jammu and Kashmir which was abrogated on 6 August 2019.

9. Article 370 of the Indian Constitution is related to –

- (a) State of Jammu and Kashmir
- (b) State of Sikkim
- (c) State of Nagaland
- (d) State of Manipur

U.P. U.D.A./L.D.A. (Spl.) (Pre) 2010

Ans. (a)

See the explanation of the above question.

10. Articles of the Constitution of India that apply on their own to the State of Jammu and Kashmir, are

- (a) Articles 1 and 241
- (b) Articles 2 and 356
- (c) Articles 1 and 370
- (d) Articles 370 and 371-A

U.P.P.C.S. (Mains) 2016

Ans. (*)

During the question period, Article 1 and Article 370 of the Indian Constitution were automatically imposed in the state of Jammu and Kashmir. Article 1, where the state of Jammu and Kashmir was declared as an integral part of Indian territory, on the other hand, Article 370, gave special status to Jammu and Kashmir. Currently, no special status has been granted to Jammu and Kashmir. The state of Jammu and Kashmir does not exist at present. In its place, two union territories namely, Jammu and Kashmir and Ladakh, exist.

11. According to which Article of the Constitution, the state of Jammu and Kashmir has got a Special Status?

- (a) Article 1
- (b) Article 360
- (c) Article 270
- (d) Article 370

Uttarakhand P.C.S. (Pre) 2016

Ans. (*)

Article 370 of the Indian Constitution provided special status to the state of Jammu and Kashmir earlier. Article 360 has provisions relating to Financial Emergencies. Article 1 declares India to be a Union of States and Article 270 is about taxes levied and collected by the Union and distributed between the Union and the States. Currently, no special status has been granted to Jammu and Kashmir.

12. When was the designation Sadr-e-Riyasat changed to Governor for the state of Jammu and Kashmir?

- (a) 1948
- (b) 1950
- (c) 1952
- (c) 1967

U.P.P.C.S. (Pre) 1997

Ans. (*)

The Constituent Assembly of Jammu and Kashmir abolished the hereditary rule of the Maharaja and elected Karn Singh as the First Sadr-e-Riyasat of Jammu and Kashmir in 1951. Later, the name 'Sadr-e-Riyasat' was renamed as 'Governor' by Sixth Amendment Act, 1965 of the Constitution of Jammu and Kashmir. Thus, none of the given option (answer) is correct.

13. Arrange the following events in a chronological order and select the correct answer from the codes given below :

- I. Maharaja Hari Singh signed the Instrument of Accession.**
- II. Constitution of India was enforced.**
- III. Accession to India ratified by the Sovereign Constituent Assembly of Jammu and Kashmir.**
- IV. New Constitution of the State of Jammu and Kashmir came into force.**

Codes :

- (a) I, III, IV, II
- (b) III, IV, I, II
- (c) I, II, III, IV
- (d) IV, III, II, I

U.P. P.C.S. (Pre) 2019

Ans. (c)

Maharaja Hari Singh signed the Instrument of Accession on 26 October, 1947. The Constitution of India was enforced on 26 November, 1950. Accession to India was ratified by the sovereign Constituent Assembly of Jammu and Kashmir on 17 November, 1956, and new constitution of the state of Jammu and Kashmir came into force on 26 January, 1957.

14. Which one of the following States was never granted the Special Category Status (SCS) by Central Government?

- (a) Bihar
- (b) Sikkim